Cover Letter for Submission

July 23, 2025

Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244

Re: Submission of Appeal and Supporting Documents
Appellant: Peter Golub
Case Nos.: 25-B-00327 / 25-A-05051

Dear Members of the Workforce Appeals Board:

Enclosed please find my written appeal and accompanying documentation in support of my request for reversal of the Administrative Law Judge's decision dated July 9, 2025, denying unemployment benefits.

Included in this submission are:

1. **Appellant's Formal Letter of Appeal**
   (Detailed arguments addressing factual and legal errors in the ALJ's decision.)
2. **Certified Hearing Transcript** (July 8, 2025)
   (Relevant excerpts highlighted to facilitate the Board's review.)
3. **ALJ Decision to Deny Benefits**
   (For the Board's convenience and reference.)
4. **Exhibits A & B**:
   - **Exhibit A:** Screenshot—Frontline Credentials Disabled (May 5, 2025)
   - **Exhibit B:** Email Confirmation—Granite School District Account Deactivation (May 10, 2025)
5. **Declaration of Peter Golub**
   (Unsworn declaration pursuant to Utah Code § 78B-5-705, detailing the events of May 5, 2025, and subsequent account deactivation.)

I respectfully request the Board's careful consideration of these materials and seek reversal of the ALJ's decision or, alternatively, a de-novo remand for a fair rehearing with full discovery.

Please confirm receipt of these documents. I thank the Board in advance for its thorough review of my case.

Respectfully submitted,

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July 22, 2025
Workforce Appeals Board
P.O. Box 45244
Salt Lake City, Utah 84145-0244
Re: Appeal of ALJ Decision — Case Nos. 25-B-00327 / 25-A-05051

I. Introduction

This appeal challenges the Administrative Law Judge's (ALJ) July 9, 2025 decision, which incorrectly found that Peter Golub voluntarily quit employment with Granite School District ("Granite"). The certified hearing transcript conclusively demonstrates that Granite initiated the separation by deactivating Mr. Golub's credentials on May 5, 2025, before any alleged resignation occurred. Granite failed to meet its burden of proving voluntary resignation, and the ALJ explicitly acknowledged uncertainty regarding critical employer testimony. Therefore, this Board should reverse the ALJ's decision or, at minimum, remand for a fair rehearing error of law.

II. Statement of Facts:

1. *Employer-Initiated Lockout (May 5, 2025)*: Granite unilaterally locked Mr. Golub out of his substitute-teacher employment portal ("Frontline"), thus barring him from employment opportunities (Tr. p.16, ll.17-26). Mr. Wyatt Bentley, Granite's witness, explicitly admitted Granite had not decided to discharge Mr. Golub at that time, making the lockout unjustified (Tr. p.16, ll.24-26).
2. *No Timely Notice from Employer*: Granite failed to notify me of this action. When asked if a notification email was sent on May 5, Granite's witness, Mr. Wyatt Bentley, testified, "I don't have the date that it was sent out. I would have to go back and look…" (Tr. p. 17, ll. 4-6). The record shows the first contact from Granite was an email on May 13, 2025,

eight days after the lockout. Mr. Bentley was unable to confirm whether Granite provided Mr. Golub with timely notification of the lockout (Tr. p.17, ll.2-6). No notification was ever received; the first employer contact was eight days later (May 13).

3. *Employer's Ambiguous Testimony Regarding Employment Status*: When asked directly whether Mr. Golub was placed on probation or suspension, Mr. Bentley responded ambiguously:

   > "With our hourly employees or our substitutes, we don't necessarily consider probation... I guess it would be an informal probation, but not necessarily something that's formal, no." (Tr. p.16, ll.31-34)

   This equivocal testimony clearly indicates procedural confusion, supporting Mr. Golub's reasonable belief that his employment had ended involuntarily.

4. *Employer Unable to Verify Alleged Resignation*: During his testimony, Mr. Bentley admitted he could not recall Mr. Golub's exact words regarding the alleged resignation, testifying: "I don't remember the exact wording" (Tr. p.19, ll.4-10). The ALJ subsequently reinforced this critical uncertainty on the record: "He's [Mr. Bentley] already said he doesn't remember exactly what you [Mr. Golub] said." (Tr. p.20, ll.7-11). Granite thus provided no credible evidence that Mr. Golub voluntarily quit.

5. *Procedural Due Process Violation*: The ALJ excluded key evidence timely submitted by Mr. Golub, severely prejudicing his ability to present a complete defense (Tr. p.6, ll.3-8). Meanwhile, Granite selectively utilized documents Mr. Golub had no access to, causing substantial procedural unfairness.

6. *The Employer Failed to Meet Its Burden of Proof*: Utah Admin. Code R994-405-105 places the burden of proof squarely on the employer to show that a claimant's separation was a voluntary quit. An employer's claim based on testimony that "I don't remember the exact words" is not proof; it is conjecture. Granite offered no credible, competent evidence to

meet its burden. The ALJ erred in finding for the employer when the employer's own witness admitted his memory failed on the most critical point.

7. *My Actions Were a Reasonable Response to a Constructive Discharge*: After being locked out of my job and having my attempts at contact ignored for over a week, any reasonable person would conclude their employment had been terminated. My email of May 13 was not the act of quitting; it was a confused response to what I reasonably believed was an already-completed termination.
8. *Continued Effort and Good-Faith Compliance*: Since May 18, 2025, Mr. Golub has maintained an active job search and timely weekly claim filings, clearly satisfying the equity-and-good-conscience standards.

III. Legal Arguments

1. *Employer-Initiated Separation*: Under Utah Admin. Code R994-405-201, a separation is employer-initiated if the employer's actions determine the claimant's last working day. Granite's unilateral lockout constitutes precisely such an action, as established by *Clearfield City v. Dept. of Employment Security*, 663 P.2d 440 (Utah 1983).
2. *Employer Failed to Meet Burden of Proof*: Utah Admin. Code R994-405-105 mandates that Granite bear the burden of proving voluntary resignation. Testimony admitting uncertainty about Mr. Golub's words (Tr. p.19, ll.4-10; Tr. p.20, ll.7-11) does not satisfy this burden, rendering the ALJ's finding clearly erroneous.
3. *Lack of Just Cause*: Under *Kehl v. Board of Review*, 700 P.2d 1129 (Utah 1985), Granite was required to demonstrate culpability, knowledge, and control—none of which appear in the record.
4. *Procedural Due Process*: The exclusion of Mr. Golub's submitted exhibits, while allowing Granite's selective documentation, constitutes prejudicial error warranting remand.

5. *Equity and Good-Conscience Compliance*: Regardless of classification, Mr. Golub meets all equity standards under Utah Admin. Code R994-405-103 through continuous, active employment-seeking efforts.
6. *Hostile Work Environment Due to Illegal Drug-Test Demand*: Granite's principal demanded Mr. Golub submit to an immediate blood test without legal basis, violating Utah Code §34-38-6 and Granite Policy IX.A.1.b, thereby creating intolerable working conditions.

IV. Relief Requested

Mr. Golub respectfully requests that this Board:

1. Reverse the ALJ's decision and award unemployment benefits retroactively from May 18, 2025; or
2. Remand for a new hearing with specific instructions compelling full disclosure of Granite's May 1–15, 2025 email records, and subpoena all relevant witnesses concerning the May 5, 2025 incident involving police intervention at Taylorsville Elementary.

Granite initiated the separation by locking me out of my job and ignored my attempts at communication. When Granite finally contacted me a week later, it continued to ignore the subject of my emails and the May 5 incident and lockout. I worked very hard for the district, spending more money than any teacher I came across on food and school supplies for low-income students. Despite Granite's termination of my employment, I continue to work on low-income education and am applying to jobs everyday in the AI and education sectors. However, the job market is tight, and I genuinely need these payments to stay afloat while I continue to look for jobs where I can make a positive impact with my skills. I currently have less than $200 in my bank account and am selling my books, clothes, and appliances to make payments. I tried to sell the wingtips I wore to class on May 5 for $300, eventually someone picked them up for $90. They were practically brand new. I don't

have a lot of shoes left. I'm down to hiking boots and old running sneakers by this point. You can find my profiles on Etsy, KSL, Facebook Market Place, eBay, and Amazon.

Therefore, I once again beseech the Board, please reverse the ALJ's decision and find me eligible for unemployment benefits beginning May 18, 2025.

Respectfully,

Peter Golub, Appellant-Claimant

Before the Department of Workforce Services
Unemployment Compensation Appeals

DIVISION OF ADJUDICATION

In the Matter of the Claim of :

Peter Golub :

for :

Unemployment Insurance Benefits

REPORTER'S TRANSCRIPT

Hearings conducted by telephone from the office of the Administrative Law Judge located at 140 East 300 South, Salt Lake City, Utah, on July 8, 2025; same being pursuant to the Notice of the Administrative Law Judge of the Department of Workforce Services.

Before HON. Judge Gibbs
Administrative Law Judge

APPEARANCES:

Peter Golub, Claimant

Nate Trujillo, Employer
Wyatt Bentley, Employer Witness
DeMarie Hoover, Employer Witness

Reported by Kanchan Mutreja

SYSTEM VOICE: Thank you for calling Employer Advocates. For a first name directory, please press pound two, or if you know your party's extension, you may dial it at any time. Our office hours are from 8:00. Dialing.

EMPLOYER: Employer Advocates, this is Nate.

JUDGE: Mr. Trujillo, this is Judge Gibbs with the Department of Workforce Services with the State of Utah calling for the Unemployment Insurance Appeal hearing in the matter of Peter Golub and Granite School District.

And I have a note here indicating you have a witness that needs to be called. Looks like I have the name of DeMarie Hoover. Is that right?

EMPLOYER: That is correct, yes.

JUDGE: All right.

EMPLOYER: Also Wyatt Bentley [phonetic].

JUDGE: Okay. Will they be at the same number?

EMPLOYER: They will, yes.

JUDGE: Okay.

EMPLOYER: I don't know if I gave you Wyatt's number or DeMarie's, but they will be at Wyatt's number.

JUDGE: Okay, I don't have that one. So tell me that number.

EMPLOYER: Yeah, it's 385-646-4237.

JUDGE: All right. Hold on just a moment.

EMPLOYER: Okay.

SYSTEM VOICE: Hello, you have reached the office of Wyatt Bentley. Please leave your name, number, and a brief message, and I will return your call. Thank you. Have a beautiful day.

JUDGE: That didn't work. Should I try DeMarie Hoover's number? Sorry, Mr. Trujillo, are you there?

SYSTEM VOICE: Thank you for calling Employer Advocates. For a first name directory, please press pound two, or if you know your party's extension, you may dial it at any time. Our office

hours are from 8:30 to 5:00. We are closed for an hour lunch. Dialing.

EMPLOYER: Employer Advocates, this is Nate.

JUDGE: Sorry about that, Mr. Trujillo. There's a trigger, a hair trigger on this drop button, I guess. It dropped both you and the call when I was trying to reach Mr. Bentley. Do you want me to try that number again or do you want me to try the number of DeMarie Hoover? It just went through to his voicemail.

EMPLOYER: Yeah, we can try DeMarie or I have a cell number for Wyatt.

JUDGE: Okay. Either one. Whatever number you want me to try, I'll try that one.

EMPLOYER: Yeah, they were supposed to be available the first…

JUDGE: Okay, I can try that again. Maybe they just didn't get to the phone. So let me try that again.

EMPLOYER: Okay.

UNIDENTIFIED PERSON: Hi, this is Stephanie.

JUDGE: Yes, this is Judge Gibbs with the Department of Workforce Services from the State of Utah. Can I speak with Wyatt Bentley or DeMarie Hoover, please?

UNIDENTIFIED PERSON: Yeah, hold on. I think Wyatt's phone is still forwarded to mine. So hold on. Hold on, okay.

JUDGE: All right, thank you.

UNIDENTIFIED PERSON: All right, are you still there?

JUDGE: Yes.

UNIDENTIFIED PERSON: Okay, we got his phone unforwarded. Now I'm going to send him to, they're in there waiting. Okay. Anyway, I'm putting him back. Hold on.

JUDGE: All right.

UNIDENTIFIED PERSON: You're welcome.

EMPLOYER WITNESS: Hello, this is Wyatt Bentley.

JUDGE: Mr. Bentley, this is Judge Gibbs with the Department of Workforce Services from the

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State of Utah calling for the Unemployment Insurance Appeal hearing the matter, Peter Golub. And I want to let you know that I have the employer's representative, Mr. Nate Trujillo, online with us. Do you also have DeMarie Hoover present with you?

EMPLOYER WITNESS: I do, yes.

JUDGE: All right. Thank you. Let me go ahead and call the claimant and then we'll begin. Hold on just a moment.

EMPLOYER WITNESS: Thank you.

CLAIMANT: Hello.

JUDGE: Hi, can I speak with Peter Golub, please?

CLAIMANT: This is him.

JUDGE: Mr. Golub, this is Judge Gibbs with the Department of Workforce Services from the State of Utah calling for the Unemployment Insurance Appeal hearing. I want to let you know that I have the employer on the line with this as well.

I have the employer's representative, Mr. Nate Trujillo, as well as witnesses for the employer, DeMarie Hoover and Wyatt Bentley.

And I want to begin the hearing today by reading an opening statement into the record and then I'll explain the procedures we will follow during the course of the hearing as well as the issues that are before me in the hearing today

And I will give both parties an opportunity to ask any questions that you may have as we go forward.

We are on the record in the matter of Peter Golub and at Granite School District. This hearing is being held by telephone at the Department of Workforce Services Office on July 8th, 2025 at approximately 12:35pm.

The Administrative Law Judge is Judge Gibbs. The claimant filed a timely appeal from an apartment representative's decision denying unemployment insurance benefits on the grounds the claimant quit his job without good cause and a denial of benefit would not be contrary to equity and good conscience.

I want the record will reflect the parties are participating in this hearing by telephone. The claimant Mr. Golub, is on the line at this time. Mr. Golub, anyone else beside yourself participating for you in the hearing today?

CLAIMANT: No, Judge.

JUDGE: All right, the employer is present by telephone, the employer's representative, Mr. Nate Trujillo and witnesses for the employer, DeMarie Hoover and Wyatt Bentley. Anyone else participating for the employer in the hearing today, Mr. Trujillo?

EMPLOYER: Nobody else, Your Honor.

JUDGE: All right, well, let the parties know that this hearing is being recorded and your testimony will be taken under oath as required by law. There will not be another hearing in this matter, so make sure you present all evidence you would like to during the hearing today.

And I want to explain the issues that are before me in the hearing today. The first issue that I'll address is whether the claimant quit his job for good cause or was discharged for just cause.

When we get to the testimony portion of the hearing, I'll begin with the claimant's testimony first. I'll place him under oath and ask him questions about his separation from the employer.

After I've completed my questioning. Mr. Trujillo would have the right to ask questions of Mr. Golub as well. I'll then take testimony from the employer. I'll place witnesses for the employer under oath and ask them questions about the claimant separation from the employer.

And after I've completed my questioning, Mr. Trujillo would have the right to ask the employer's witnesses any questions that he may have of them, following my Mr. Golub having that right as well.

Before taking testimony, I will go through the documents that were used in the original department decision. I'll identify them for the recording, give them an exhibit number, and propose they be entered into the hearing record. Any questions about how we will proceed with the hearing at this point, Mr. Golub?

CLAIMANT: No, Your Honor. I tried to submit several exhibits. I attached them yesterday. I tried to email them earlier, but then I saw that they had not, that email address didn’t work. And I was wondering if that could be submitted into the record.

JUDGE: Did you submit copies to the employer as well?

CLAIMANT: Well, so yeah, so I tried, so I did, I did try to do that. But looking at my email, it looks like that entire, that entire email didn't get sent to anyone. And then I attached it today. But I do understand that if it was not submitted to the employer in a timely manner, then I will possibly make reference to certain arguments made in connections with those

exhibits, but if we cannot submit them then I think that's it.

JUDGE: Right. I hadn't seen them come into our office or at least attached to your case by this morning either. So I haven't seen them and it doesn't sound like the employer's seen them.

So I can't enter them into the hearing record. But you can refer to them and your testimony under oaths will be just as, you know…

CLAIMANT: Yes, Your Honor.

JUDGE: As credible or as relevant as the documents themselves. If I were to find that some document that you wanted to submit is absolutely critical to the issue that's before me in the hearing today.

I could consider rescheduling or continuing the hearing until later day to get those documents admitted into the record. But until that time, I'll just allow you to testify about that anything that's in them or the documents themselves. Okay.

CLAIMANT: Yes, Your Honor.

JUDGE: Any other questions about how we will proceed with the hearing at this point, Mr. Golub?

CLAIMANT: No, Your Honor.

JUDGE: Any questions about that, Mr. Trujillo?

EMPLOYER: No questions.

JUDGE: All right. And I want to go ahead and go through the documents. They are marked as exhibits on the bottom center portion of the documents. They're marked as exhibits one through 18.

These were sent to the claimant electronically in his electronic correspondence on his claim and mailed to the employer's representative along with the notice of the hearing. Did you receive a copy of the documents, Mr. Golub?

CLAIMANT: Yes, Your Honor.

JUDGE: All right. And did the employer as well, Mr. Trujillo?

EMPLOYER: Yes, Your Honor, we received and reviewed.

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JUDGE: All right. All right. Before going through them, I want to place the parties under oath. Mr. Golub, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

CLAIMANT: Yes.

JUDGE: Please state your full name for the record.

CLAIMANT: Peter Golub.

JUDGE: Mr. Golub, I have as your mailing address 3921 South 2000 East in Holladay 84124. Is that correct?

CLAIMANT: That is correct, Your Honor.

JUDGE: All right. And the Department of Worker show you've chosen to receive correspondence from the Department of Workforce Services electronically. Is that correct?

CLAIMANT: Yes, Your Honor.

JUDGE: All right. I will send my decision to you electronically, but I did want to verify your mailing address. So going to place the witnesses for the employer under all of this, Mr. Bentley, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

EMPLOYER WITNESS: Yes, Your Honor.

JUDGE: Please state your full name for the record.

EMPLOYER WITNESS: Wyatt Lane Bentley.

JUDGE: Mr. Bentley, what is your job title with the employer?

EMPLOYER WITNESS: Associate Director of Human Resources.

JUDGE: Thank you. DeMarie Hoover, do you solemnly swear or affirm that the testimony you will give will be the whole truth and nothing but the truth?

EMPLOYER WITNESS 2: I do.

JUDGE: Please state your full name for the record.

EMPLOYER WITNESS 2: DeMarie Hoover.

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JUDGE: Ms. Hoover, what is your job title with the employer?

EMPLOYER WITNESS 2: I'm an HR Teacher Specialist.

JUDGE: All right. Thank you. Mr. Trujillo wanted to verify the employer's mailing address with the Unemployment Insurance Division. I have as the employer's mailing address the mailing address for Employer Advocates at PO Box 9 in Midvale 84047. Is that correct?

EMPLOYER: That is correct, yes.

JUDGE: All right. And is there an email address that I could send my decision to rather than sending the decision through the mail, Ms. Trujillo?

EMPLOYER: Yes, absolutely. You can send that to Steve, S-T-E-V-E, at employeradvocates.com.

JUDGE: All right. Got it. Be looking for my decision there rather than through the mail. I'll go through the documents, I'll identify them for the record and give them an exhibit number. Beginning of exhibit number 1 is entitled Claim for Unemployment Benefits.

This is simply a copy of the initial claim for benefits filed by the claimant effective May 18th of 2025. And these are exhibits 1 through Exhibit 4.

Beginning with Exhibit 5 is entitled separation statement. This is information Mr. Golub provided to the department regarding the reason for his separation from the employer when he first filed his claim.

These are exhibits 5, 6, and 7. Mr. Golub does the information on Exhibits 5, 6, and 7 accurately reflect what you reported to the department at that time?

CLAIMANT: Yes, it does, Your Honor.

JUDGE: Thank you. Those are exhibits 5, 6, and 7. Exhibit number 8 is an additional letter from the claimant to the department. This goes on to exhibit number 9 as well. Mr. Golub, did you prepare Exhibit 8 and 9?

CLAIMANT: Yes.

JUDGE: Thank you. Exhibits 10 and 11 is the notice that was sent to the employer informing the employer the claimant had filed a claim for benefit, requesting information about his separation from the employer.

Exhibit number 12 is, looks like a copy of an email from the claimant to the employer dated Tuesday, May 13th of 2025. Mr. Golub, were you the one who prepared what's marked as exhibit number 12?

CLAIMANT: Yes, Your Honor.

JUDGE: Thank you. Exhibit number 13 looks like an email from Mr. Bentley to the claimant. Mr. Bentley, did you prepare the email there on exhibit number 13?

EMPLOYER WITNESS: Yes, sir.

JUDGE: Thank you. Exhibit number 14 is, looks like a screenshot of a statement there, and that's marked as Exhibit number 14. Exhibit number 15 is the department's decision. Exhibit 16 and 17 is the decision letter that was sent to the claimant.

And exhibit number 18 is the claimant's appeal letter of the department's decision. Mr. Golub, do you have any objection to any of the documents being entered into the hearing record?

CLAIMANT: I can't read exhibit 14. Is it fair on your guys' end?

JUDGE: It's pretty difficult for me to read. I think I was able to read most of it, but we could have the employer read that if there's Mr. Bentley, if you are able to read that for us for the record or if you have a clearer copy.

EMPLOYER WITNESS: Sure. On 5/10/20/25 Brenda Burns and myself had a phone call with Peter Golub. We were going to address some concerns that had been expressed by a school, see attached email.

When we reached Mr. Golub, he had seen the email, and since we were not calling to talk about the use of AI in Granite School District, he did not want to waste our time or his, sorry, he didn't want to waste our or his time and resign from Granite School District, signed by Wyatt Bentley.

JUDGE: All right, thank you. All right. So any objection to any of the documents being entered into the hearing record, Mr. Golub?

CLAIMANT: No.

JUDGE: All right. And Mr. Trujillo, any objection to any of the documents being entered into the hearing record?

EMPLOYER: No objection, Your Honor.

JUDGE: All right. Then I will receive the exhibit into the hearing record and will proceed with the testimony portion of the hearing. Let me go ahead and take your testimony, Mr. Golub. Could you tell me the beginning date of your employment with the employer?

CLAIMANT: I believe it was September 2023.

JUDGE: All right. What was your last day of work?

CLAIMANT: May 5th, 2025.

JUDGE: All right. What was your job title at the time of separation?

CLAIMANT: Substitute teacher.

JUDGE: All right. And what was your rate of pay?

CLAIMANT: So there were two, two ways that it was evaluated. The base pay was $25 and I think like 33 cents. But then if I worked consecutively for, I think I believe 15 days, then it was raised to $32 an hour.

JUDGE: Okay. All right. And Mr. Golub, did you quit your job with the employer?

CLAIMANT: I did not.

JUDGE: All right. Were you fired from your job?

CLAIMANT: So what had happened was on May, this was part of the exhibit that I had tried to submit. On May 5th. I tried to log into Frontline, which is the management system, the way that you get a job is you log into the system and you find a task and then you go in and you teach.

That's the only way that you can teach for the Granite School District substitute teacher is if you can log into Frontline and find, find, you know, it can be a day of substituting. It can be up to, I think, one time I substituted for eight months.

Not exactly the same place, but I had to log into Frontline to continue doing that. And on May 5th, I was unable to do it. My account had been deactivated. So that was what I had an exhibit when I tried to submit.

And so there was no way that I could work after May 5th and I was never that account was never activated. And then on December 10th, so not only could I not log into my Frontline account. My other school district accounts had been deactivated.

So exhibit B on May 10th. I guess this email from the Granite School District saying that your account has been deactivated. And this is because there's multiple accounts. And this other account that has been deactivated May 10th was for other jobs that I was looking for, because I was really trying to get a long term position with the Granite

School District.

I put in considerable time going through all sorts of preparations. I took a lot of classes. And my goal was to get a full time position with the Granite School District. And so starting in the fall in 2025, hopefully I would be closer to or have a job teaching English [unintelligible] humanities.

I also submitted application to teach biology as an undergraduate I did study biology. And I have a pretty good concept of like contemporary, you know, basic in biology. So I was trying to not only do substitute teaching, but I was trying to get a full-time position.

But on May 5th, my account's deactivated, and on May 10th, I actually got an email to my Gmail saying that it hasn't deactivated. The problem with having your account deactivated is that I couldn't go in and see.

Not only did I not apply for a substitute pass, but I couldn't go into the system and look at any of my other accounts that were set up. And then my email account was closed and deactivated on May 15th.

So I have no access to any of the emails that have been submitted in the exhibit. And as they are submitted partially, I will try to say that they shouldn't be submitted or used in this trial because I don't have access to any of that information.

JUDGE: Let me go back to May 5th when you found this was deactivated. Did you call the employer and ask why?

CLAIMANT: I did.

JUDGE: Your account was deactivated?

CLAIMANT: Oh, yes, I did. Yes, I sent many emails and I tried to call them. And but I finally did get a response about a week later. It was regarding something completely different that had happened in April.

It had happened weeks before that I had no correspondence regarding that incident. And all of the emails that I sent prior to that have now been submitted as a exhibit.

JUDGE: Hold on. Hold on just a moment. Who did you speak to when you called and spoke with someone?

CLAIMANT: No, I called, but I couldn't get anyone on the phone.

JUDGE: So what happened when you called? I mean a school district should be answering their phone at some point.

CLAIMANT: Well, what I did is I sent emails.

JUDGE: But I thought you said you called though?

CLAIMANT: I did call.

JUDGE: Okay. And what would happen when you would call?

CLAIMANT: I just got, I mean, I can't remember exactly, but it wasn't, you know, I can, I don't remember the message that I got when the automatic methods kicked in. But what I did do after that was that I sent multiple emails about my deactivation.

JUDGE: And who did you send that to?

CLAIMANT: I believe Mr. Bentley and the other person I was working with. I can't remember her name, but I sent them to, Granite School District, I had contact with two Granite School District employers [unintelligible].

I sent those emails to definitely Mr. Bentley, but I, but I, I assume I sent it to both of them as our correspondence involved. Not just him, but other Granite School District.

JUDGE: All right. You mentioned something else that happened on May 10th. What happened again on May 10th?

CLAIMANT: So on May 10th, this is what I try to submit, on my end, it's an email that I got. This is the only email I have as I don't have access to my Granite School District email, but this is an email that was sent to my Gmail because part of my Granite School District ID has also my Gmail address.

JUDGE: Okay. Just related to that account being deactivated?

CLAIMANT: Yeah.

JUDGE: Okay. I understand that. I don't need for you to go back into that. I just wanted to clarify that. So we have this email from Mr. Bentley dated May 13th. That's the exhibit number 13. Did you receive that from him asking you to provide explanation about these issues?

CLAIMANT: I did. Yeah.

JUDGE: So did you understand when you received this that you had not been discharged from your job?

CLAIMANT: Well, I was, well, so I had, so once you have your account deactivated, you are, you

can't, it's not like you can continue to work. You can't, you know, you can't just show up to a school.

JUDGE: But that's not what I'm asking. I'm not asking about that. Why would they be sending you this email asking you to explain if you were no longer an employee with the employer?

CLAIMANT: Well, that is very curious to me because not only did this email not address my, what I had said in my previous emails, it addressed something that I had no knowledge of that was an issue until that email and I, I was very confused.

JUDGE: Well, in your response, you talk about you don't have any plans to work for Granite School District, but I mean, if you thought you were already fired, why would you have plans to work for them?

CLAIMANT: Well, exactly, exactly.

JUDGE: But that's what I'm asking. Why would you, why would you even respond if you had been discharged, it wouldn’t make any sense to really response?

CLAIMANT: Well, because I, because I very much want, wanted to continue working. I mean, I was confused, but my ultimate argument is that I definitely wanted to continue working for them, which is why I was putting together this large document about AI and education.

Because I've seen many, many [unintelligible] the Granite School District and had been talking to other teachers and I've been working on this for some time and my ultimate goal, which is why I wanted to discuss AI when I, I thought I was going to meet with them.

Because, you know, not only did I want to continue being a substitute teacher, I wanted to be a full-time teacher and I wanted to be part of what I believe to be an inevitable process of using AI tutors like the Khan Academy to help especially low-income students.

JUDGE: Hold on, hold on, hold on, you're giving a little more detail about that than I need. If you absolutely wanted to continue working for the employer, why would you tell them that you're not planning on working for them?

CLAIMANT: Well, so I would still be happy to work for them. I was under the impression that they had already, you know, deactivated all my accounts, so I couldn't work for them anymore and I believed that if, quite honest I was confused.

I did want to keep working for them and then I was under the impression that they had, you know, basically terminated my employment and as I believed that.

JUDGE: In this email, I mean, if that was your issue, you were confused and you didn't know what was going on. While we have this email, I don't see anything in here about you asking to clarify and whether you were employed.

You never ask, am I discharged or do I not have a job or do I have a job or you don't say, hey, I've already been discharged, why am I getting this email at this point? You don't seem to be mentioning any of that in this email on exhibit number 12.

CLAIMANT: Well, I was under the impression that under Utah law and most laws, that if an employee is prevented from attending their job, that they do not have a job.

JUDGE: I understand that, what, I understand that's your statement and your argument, but I'm asking in, in that email on exhibit number 12, you never make reference to anything like that about you already being discharged, that you were deactivated, you're no longer an employee, so, you know, why are you sending me work-related email?

I've already been discharged, but you don't say anything like that in that exhibit number 12. You just go on and explain your issues and your concerns and then you tell the employer you're not planning on working for them anymore.

CLAIMANT: I was, I was under the impression that by May 5th, I had essentially been terminated.

JUDGE: All right. Did you tell Mr. Bentley over the telephone that you were resigning your position?

CLAIMANT: No, I did not.

JUDGE: Okay. When you spoke with the Department of Workforce Services representative, you told them that you had not been discharged from your job. Do you, do you know why you told the Department over the phone that you had not been discharged from your job?

CLAIMANT: Yes, I was slightly confused about the language, right. So I was under the impression that discharge meant that I had been fired with just cause, and so I wanted to make the point that I, that when they deactivated my account.

The reason that they gave, which was the issue that had happened in April, in April, was not the reason that they had initially deactivated my account. So I was a little bit confused with what exactly the language meant at that time.

JUDGE: So on exhibit number, exhibit number seven, your conversation with the Department representative, you talk about being in a meeting with the employer and you told the Department you left the meeting and did not return to work. Is that true?

CLAIMANT: Well, I couldn't have, I was unable to go to work starting May 5th.

JUDGE: So that's not what you told the Department, you just said you left the meeting and you never returned to work. Did you tell them that?

CLAIMANT: What is this, exhibit six?

JUDGE: Exhibit seven at the top.

CLAIMANT: Okay, let's see.

JUDGE: Second line, it says he left the meeting and did not return to work. And then the next line states, states that he was never discharged or told he was discharged. So you're making this distinction between doing discharge for just cause and just being discharged there in your statement.

Did you, did you tell the Department you had never been discharged? You were not discharged or told you were discharged?

CLAIMANT: I was trying to, as I am now, I was trying to make some points. I mean, at this point in time, I haven't really looked into the specific legalities of the language, but my understanding then and now was that on May 5th, I was discharged because I could not work. All of my accounts were deactivated.

JUDGE: All right. All right. Any other testimony you would like to provide about the reason for your separation from the employer?

CLAIMANT: Not at this time, Your Honor.

JUDGE: Okay. Mr. Trujillo, do you have any questions for Mr. Golub?

EMPLOYER: No questions, your honor.

JUDGE: All right. Who would you like to have testified first for the employer, Mr. Trujillo?

EMPLOYER: Wyatt will be the main witness, DeMarie, will more than just be an observer at this point.

JUDGE: If she definitely will be an observer, she can stay. If she may be providing testimony, she would need to leave [crosstalk] [00:35:54] testimony at this point. So do you want her to stay or?

EMPLOYER: Yeah, she'll stay as an observer.

JUDGE: Okay. All right. Mr. Bentley, can you tell me the beginning date of the claimant's employment with the employer?

EMPLOYER WITNESS: Yes. Just one moment. Hired first 7/14/23, but of course, wouldn't have started subbing until school kids were back in school.

JUDGE: Okay. What was his last day actually work?

EMPLOYER WITNESS: 5/5/ of '25.

JUDGE: All right. What was his, sorry, he indicated he was a substitute teacher. Is that right?

EMPLOYER WITNESS: Correct.

JUDGE: And what was his rate of pay?

EMPLOYER WITNESS: $25.84.

JUDGE: Okay. All right. Mr. Bentley, the claimant testified that he was locked out or his account was deactivated with the school district on May 5th of 2025. Do you know if that's true?

EMPLOYER WITNESS: It is. When we have either a level of concern that's raised from a school or multiple situations, we do block subs from taking positions until we can do an investigation and reach out to them.

JUDGE: All right. And had the employer made the decision to discharge him at that time?

EMPLOYER WITNESS: We had not.

JUDGE: All right. Did the employer consider him to be on probation or on suspension at that time?

EMPLOYER WITNESS: With our hourly employees or our substitutes, we don't necessarily consider probation. It's just depending on the concerns, the level that they rise to or how many we've had, we'll just say we want to, I guess it would be an informal probation, but not necessarily something that's formal, no.

JUDGE: Okay. And when the employer does that, I mean, on the day that that happens, did the employer inform Mr. Golub that he was being deactivated on that day because of concerns?

EMPLOYER WITNESS: We send out an email to them to let them know so that they'll make an appointment with us. Sometimes what happens, I don't think this was in this, if it wasn't in this situation, but yes, we do reach out to them, let them know that we need to have an appointment with them so that we can and ask them to schedule an appointment, so we can have that conversation, give them their opportunity to explain their side of things.

JUDGE: So was that sent out on May 5th when he was deactivated?

EMPLOYER WITNESS: You know, I'm going to be honest with you. I don't have the date that it was sent out. I would have to go back and look, but yes, that's our practice is to do at the same date that they are suspended, that they're deactivated.

JUDGE: Is that a different letter or email than the one we have in the record that you prepared and sent to him on the 13th, which is the exhibit number 13?

EMPLOYER WITNESS: It is.

JUDGE: Okay.

EMPLOYER WITNESS: Yes, it's a different letter. It doesn't typically, it has just a brief overview of the situation, not as much detail as that requested. And it just lets them know that there has been a complaint to that we need to set up an appointment so we can have that conversation.

JUDGE: And you leave that up to them to call back to set the appointment?

EMPLOYER WITNESS: Correct. Yeah.

JUDGE: Okay. The claimant testified that he emailed you and tried to call you on the 5th and in the days thereafter about why his account had been deactivated and didn't receive any response. Can you respond to that?

EMPLOYER WITNESS: I can say I did get an email on the 5th. However, I will be honest with you. I didn't see anything about a question about why the account has been deactivated. Most of it is talking about using AI and the disservice that we're doing to our students by not using AI to help take them, but help them along the way.

JUDGE: All right. When was the first time you spoke with him after his account had been deactivated in the system?

EMPLOYER WITNESS: I believe speaking to him on the phone was on the 15th, if I remember correctly.

JUDGE: All right. Tell me what happened in that conversation.

EMPLOYER WITNESS: Oh, I apologize. It was the 10th. It was on the 10th.

JUDGE: Tell me what happened on the 10th?

EMPLOYER WITNESS: We'd had a little bit of a confusion with getting ahold of him. He was, he'd been in the shower or was getting into the shower as we called him initially. I'd made a mistake apparently on the time.

So then we called him back in between that time and when I called him back, he'd gotten the email and basically when he talked to me on the phone, he then said, well, I can see that you don't want to address my concerns with AI.

Therefore, I don't want to waste your or my time. And I'm not planning on coming back to work in Granite School District.

JUDGE: All right. Was the claimant going to be discharged because of these complaints against him that's in your email?

EMPLOYER WITNESS: A lot of that would have been determined based off of his conversation with us through that interview process. And so, at that point in time, I wouldn't have been able to say he was going to be discharged for those things.

JUDGE: So you indicated at some time on the 10th, he received the email, which email are you referring to?

EMPLOYER WITNESS: The one that's in the exhibit. What's the question [crosstalk] [00:42:28].

JUDGE: Okay. That's dated May 13th. So exhibit number 13

EMPLOYER WITNESS: Well, I'm going to be honest with you, I know and I must have the wrong date then because it would definitely have been, it would have been following that one. So it would have been after that date. So I apologize for that.

JUDGE: Okay. And then did you receive the claimant's email response on the 13th? Which is exhibit number 12?

EMPLOYER WITNESS: Yes. Let me, let me double check. Yes, I did. Okay. On the 13th, correct.

JUDGE: Right, right. And had you received his response before or after you had spoken to him?

EMPLOYER WITNESS: It was after.

JUDGE: Okay.

EMPLOYER WITNESS: Well, I should say I saw it after I spoken to him. Yes.

JUDGE: Okay. And so in the phone conversation, he indicated he did not want to come back. He did not want to work for Granite any longer. Is that right?

EMPLOYER WITNESS: Correct. That was my understanding.

JUDGE: Do you recall his exact words to that effect that led you to understand he wasn't coming back or that he was quitting his job?

EMPLOYER WITNESS: I don't, to be fair, with you the exact wording. I just remember that he didn't feel there was any need to proceed with answering these questions or going through this interview process because it was going to be a waste of both of our time and he didn't intend to be with us in the future.

JUDGE: Okay. All right. In the conversation you had with him, was there any discussion about whether he had already been discharged or his confusion about thinking that he had already been discharged?

EMPLOYER WITNESS: No, sir. There was no.

JUDGE: All right. All right. All right. Any other testimony you'd like to provide about the reason for the climate separation from the employer, Mr. Bentley?

EMPLOYER WITNESS: No.

JUDGE: All right. Mr. Trujillo, do you have any questions for Mr. Bentley?

EMPLOYER: No questions, Your Honor.

JUDGE: Any questions for Mr. Bentley, Mr. Golub?

CLAIMANT: Yes. So during that last, our last conversation, did I say I am resigning or I quit or anything like that?

EMPLOYER WITNESS: There was something that led me, I'm going to be honest, I don't remember the exact words that you used, but it was to the effect of it would be pointless to move forward with the conversation with the questions we had because you weren’t planning on being with us in the fall.

CLAIMANT: So I said I don't plan to be with you on the fall?

EMPLOYER WITNESS: It was pointless for us to continue with those because it was yes.

CLAIMANT: So I'm sorry, just to clarify. So you're saying that I said I plan not to be with you in the fall?

EMPLOYER WITNESS: That was that. That was the, I don't remember the exact words that you

used, but yes, but there was no need to go forward with this conversation and these inquiries that we had because you weren't planning to be with us anyways.

CLAIMANT: Okay. So let's just, so I'll just repeat my question. So I said there is no point being with you anymore because I don't plan to be with you in the fall. Is that what I said?

JUDGE: He's already answered the question. Yeah, he's answered the question two or four times.

CLAIMANT: Okay. Sorry, I just wanted to clarify.

JUDGE: Right, but he's already said he doesn't remember exactly what you said. So that was the same.

CLAIMANT: Okay. I apologize. Yeah, no further questions, Your Honor.

JUDGE: All right. Any other testimony you'd like to provide, Mr. Gullib?

CLAIMANT: Yes. Well, are these my closing remarks or should I?

JUDGE: This is just testimony at this point. I don't know if I need closing. If you want to make a closing argument, I can give you that opportunity, but now it's time for testimony. I don't need for you to repeat anything, but any additional testimony you'd like to provide?

CLAIMANT: I would if it's possible just to put into the record the timeline as I think it was. So on May 5th, my Frontline is disabled, so I cannot accept jobs. Between May 5th and May 12th, I make multiple attempts to contact Mr. Bentley and the Granite School District regarding not being able to work.

On May 10th, I get a Gmail notice from the Granite School District of my application for these other jobs being deactivated. On May 13th, I get my first written response. I still have no access, so on May 15th, I do get some sort of response from Mr. Bentley.

On May 15th, we have a content call, and then on May 18th, I apply for unemployment, and on June 17th, I get the denial of benefit, and on the 28th of June, we have the appeals docket hearing for July 8th. That's just the timeline that I have.

JUDGE: At some point after -- at some point, did you start looking for other full-time work?

CLAIMANT: After May 15th, where I was free, at around the third week of May, I start looking for work, which is when I applied for unemployment. I hadn't even really considered that until my mother told me that I was eligible for unemployment, so then that's when I filed for unemployment.

JUDGE: Okay. The claim is effective April, or sorry, May 18th, but you actually filed the claim on

May 23rd. It's always effective on the Sunday of the week in which you apply.

CLAIMANT: Okay.

JUDGE: So exhibit number one at the top of the document shows that you filed the claim on May 23rd, and then it's effective that Sunday of that week which is the 18th, so any other testimony you'd like to provide?

CLAIMANT: Not at this time, Your Honor.

JUDGE: All right, any other questions for the claim, Mr. Trujillo?

EMPLOYER: No, Your Honor.

JUDGE: Any other testimony from the employer, Mr. Trujillo?

EMPLOYER: No, Your Honor.

JUDGE: Did you want to make a final statement or a brief final argument, Mr. Golub?

CLAIMANT: Sure, so I believe the record shows two undisputed facts. First, on the 5th of May, Granite shut off my credentials, which is the only doorway to teaching. Then, Granite never restored access and/or issued any final warning.

I was never asked, like, what are you quitting? I believe under Clearfield City and Armstrong [phonetic] the unilateral lockout is a discharge, not a quits, and the employer has offered no evidence [unintelligible] conduct.

Alternatively, even if you were to label the quits, leaving after your tools are taken, quitting was good cause under equity and good conscience. I therefore ask for benefits to be allowed and retroactive for may be weekly payment [unintelligible].

JUDGE: All right, thank you, Mr. Trujillo, any final statement?

EMPLOYER: Yes, Your Honor. Nothing shows any indication of a discharge, but there is evidence in the claimant's own words in the form of an email and testimony. And a misunderstanding of what happened does not change that fact. And we ask that the decision remain as is.

JUDGE: All right, then we'll go and close the hearing. At this time, I want to thank for participating in the hearing and I'll let you a written decision and send you a copy of my decision.

If you've not received the decision within 10 days, feel free to call the appeals office and let them know. We want to make sure you receive the decision and receive it in a timely

manner.

So, thanks again, we'll close and I get that decision out as soon as possible.

EMPLOYER: Thank you.

JUDGE: You're welcome. Goodbye.

CLAIMANT: Thank you very much, Your Honor.

JUDGE: You're welcome. Goodbye.

P R O C E E D I N G S

1
2 REPORTER'S CERTIFICATE
3
4 I, Kanchan Mutreja, do hereby certify that I typed the foregoing
5 pages, numbered from 1 through 23, inclusive, from a tape recording and that to
6 the best of my knowledge they constitute a full, true and correct report of the
7 hearing in the foregoing matter.
8
9 Secaucus, New Jersey
10 July 18, 2025

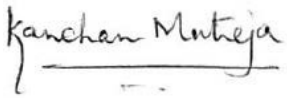

Exhibit A: *Shows Frontline page Mr. Golub saw starting May 5, 2025*

On the evening of May 5, when Mr. Golub tried to log into his Absence Management account to reserve the next day's job, he was denied access and instead met with the following message:

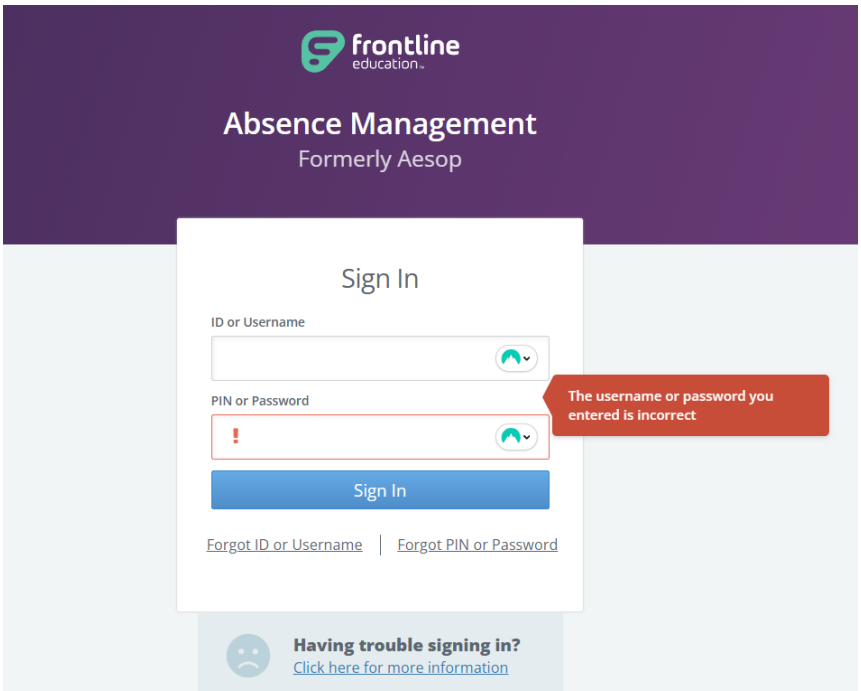

Exhibit B: *Shows the deactivation of Mr. Golub's Granite School District Account on May 10*

n.b. Although the reason for the deactivation is given as "inactive," Mr. Golub had been using the Granite School District system up until his access was deactivated on May 5, 2025.

Your application for graniteschools has been deactivated Inbox ×

AppliTrack Mailbot <mailbot@applitrack.com> Sat, May 10, 3:49 AM

to me

Your application has been marked as inactive in our records. This is a normal process that occurs annually to ensure that our application files contain only active candidates.

If you would still like to be considered for future openings, please use the "Log In" link on our application web site and enter your password when prompted. Then, update any required information, and re-submit your application using the "Finish & Submit" button at the bottom, then clicking on Submit Application. By doing this, you will automatically be reactivated in our files.

Thank you for your continuing interest in Granite School District.

-Online application mailbot

UTAH DEPT OF WORKFORCE SERVICES
UI DIVISION
140 EAST 300 SOUTH
PO BOX 45266
SALT LAKE CITY, UT 84145-0266

Utah Department of Workforce Services
Unemployment Insurance
Decision of Eligibility for Unemployment Insurance Benefits

ELECTRONIC: 06/17/2025

VQDW

PETER GOLUB
3921 S 2000 E
HOLLADAY, UT 84124-1730

SSN: xxx-xx-2127
EMPLOYER: GRANITE SCHOOL DISTRICT

Notice: This decision is made on your claim for benefits:

You voluntarily left your job because you were dissatisfied with working conditions.

You did not establish good cause for leaving by showing that staying in this job would cause sufficient hardship to make it necessary for you to quit before finding another job or that you had no reasonable alternative to quitting.

Benefits cannot be allowed under the equity and good conscience provision because you have not shown that your reasons for leaving were sufficiently mitigating and/or you have not demonstrated a continuing attachment to the labor force.

Benefits are denied under Section 35A-4-405(1) of the Utah Employment Security Act beginning 05/18/2025 and ending when you have earned wages in bona fide covered employment equal to at least six times your weekly benefit amount and you are otherwise eligible. To reopen your claim, you can file online at jobs.utah.gov, click on "Sign In" and "My Unemployment", or you can call the UI Claims Center. This reopening will be effective as of the week you reopen your claim. You will be notified separately of any other issues on your claim.

RIGHT TO APPEAL: You may appeal if you believe this decision is incorrect. Your written appeal must be submitted online, faxed, postmarked (or otherwise delivered) on or before 07/02/2025. An appeal submitted after the deadline may be considered if you can show good cause for filing late. A copy of your appeal will be sent to other interested parties. For more information about the appeals process go to jobs.utah.gov/appeals. Your written appeal must be signed by you or your legal representative and include 1) your name and current mailing address, 2) your Social Security number, 3) the date 4) your statement of appeal. It is important to continue filing your weekly claims while the appeal process is pending. You will not be paid for any week not filed timely, unless you can show good cause for filing late.

Appeal online:	Appeal by fax:	Appeal by mail:
jobs.utah.gov/appeals	(801) 526-9242	Appeals Unit, PO Box 45244, Salt Lake City, UT, 84145-0244

UI CLAIMS CENTER PHONE NUMBERS: S.L.: 801-526-4400, Ogden: 801-612-0877, Provo: 801-375-4067, Out of Area: 888-848-0688. APPEALS PHONE NUMBER: S.L.: 801-526-9300, Toll Free: 877-800-0671.

REPR.: H Shuman

EMP.#: 100002347

Doc ID: 38895261 PID: 080-120-588

DO NOT WRITE BELOW THIS LINE

DWS-UI Form 615J - Rev 2/24

IMPORTANT! This document(s) contains important information about your unemployment compensation rights, responsibilities and/or benefits. It is critical that you understand the information in this document.

DEADLINE FOR APPEAL: If you disagree with this determination or decision, you must file an appeal before the deadline noted in this document.

IMMEDIATELY: If needed, call 801-526-4400 or 888-848-0688 for assistance in the translation and understanding of the information in the document(s) you have received.

¡IMPORTANTE! Este documento(s) contiene información importante sobre sus derechos, obligaciones y/o beneficios de compensación por desempleo. Es muy importante que usted entienda la información contenida en este documento.

PLAZO LÍMITE PARA APELAR: Si usted está en desacuerdo con esta determinación o decisión, debe presentar una apelación antes del plazo límite indicado en este documento.

INMEDIATAMENTE: Si necesita asistencia para traducir y entender la información contenida en el documento(s) que recibió, llame al 801-526-4400 o 888-848-0688.

UTAH DEPT OF WORKFORCE SERVICES
UI DIVISION
140 EAST 300 SOUTH
PO BOX 45277
SALT LAKE CITY, UT 84145-0277

Utah Department of Workforce Services
Unemployment Insurance
Notice of Monetary Determination

ELECTRONIC: 5/28/2025

SSN: xxx-xx-2127

Claim Effective Date:
05/18/2025

PETER GOLUB
3921 S 2000 E
HOLLADAY, UT 84124-1730

BENEFIT AMOUNT

WEEKLY AMOUNT	TOTAL WEEKS	MAXIMUM PAYABLE
$469.00	**13**	**$6,097.00**

To receive these benefits, you must also meet eligibility requirements.

Your benefit amount is based on wages reported by your employer(s) from 01/01/2024 through 12/31/2024. Examine the wages reported below. Contact Unemployment Insurance (UI) immediately if there are any errors.

ERRORS OR MISSING WAGES MAY REDUCE YOUR BENEFITS OR PREVENT YOU FROM QUALIFYING.

Benefit calculation information can be found at https://jobs.utah.gov/ui/UIShared/PDFs/BenefitCalculation.pdf

You may receive the benefit amount shown if you meet all other requirements. You may not receive benefits if you are disqualified due to job separation or other eligibility issues. See your *Claimant Guide* for more information about eligibility issues.

EMPLOYER NAME	QTR 1/2024	QTR 2/2024	QTR 3/2024	QTR 4/2024	TOTAL	DEPT USE
GRANITE SCHOOL DISTRICT	$12,342	$11,105	$0	$0	$23,447	910258-0
UNIVERSITY OF UTAH	$0	$0	$630	$0	$630	910004-0
REGULAR BASE TOTALS	$12,342	$11,105	$630	$0	$24,077	

Any wages marked with an "*" will not be used in the benefit determination.

RIGHT TO PROTEST: If the wages or employers shown are incomplete or incorrect, you may provide information by mail to: Utah Department of Workforce Services, CO Claims, P.O. Box 45277, Salt Lake City, UT 84145-0277, call 801-526-4400, or fax 801-526-9394. Please do not send a cover sheet. Please include your social security number and any proof of wages such as check stubs. Continue to file your weekly claims. Failure to do so could result in a denial of benefits even if you are otherwise eligible.

TIME LIMITATION: You may lose your right to add wages or make changes to this determination if you do not provide this information to Workforce Services by **6/12/2025.** If you are determined to be monetarily ineligible for benefits and you have employment and wages in another state where you have worked, you may be be eligible for benefits in that state(s). To file a claim, you will need to contact the other state(s) where you worked.

Resources for Unemployed Workers

Online Job Listings and Job Search Assistance

Search for job openings at https://jobs.utah.gov/jobseeker. New listings are added daily. View tips for finding and keeping a job in our SmartStart guide: https://jobs.utah.gov/jobseeker/smartstart.pdf.

DWS offers free workshops to help you find a new job. Visit https://jobs.utah.gov/jobseeker/workshops to view the online workshops or sign-up to attend in-person.

Educational Opportunities and PELL Grant Scholarships

You may be eligible for educational assistance. DWS Training Services or Federal Pell Grant scholarships are based on financial need and other factors. Scholarships may be used for education and training expenses. Pell Grant information is available at https://studentaid.ed.gov/sa/.

You may be able to receive Unemployment Insurance (UI) benefits while attending school. Apply online by logging into your jobs.utah.gov Job Search account. Then click on **Apply for Training Services**. You may also apply in-person at your closest Employment Center.

Veteran Services

DWS helps veterans find careers after their military service. Visit http://jobs.utah.gov/jobseeker/veteran.html to access resources for educational opportunities, careers and other veteran benefits.

Child Care

The Kids In Care program may be able to help you with childcare while you search for a job. For more information call (801)326-4399 or visit www.cssutah.org.

To search for licensed childcare providers in your area visit https://careaboutchildcare.utah.gov or call (855) 531-2468. Hours of operation, ages accepted, vacancies and more are available online.

Health Insurance Payment Assistance

For information regarding the Affordable Care Act, please visit www.healthcare.gov

Utah's Premium Partnership for Health Insurance (UPP) may help you pay for health insurance you receive from an employer. UPP may also help pay for COBRA coverage. Receive up to $150 per adult and $120 per child each month to help cover the cost of your premium. For more information, call toll-free (888) 222-2542 or visit www.health.utah.gov/upp.

Utah Medicaid and the Children's Health Insurance Program (CHIP) cover medical expenses for qualifying Utah residents. You or your family members may be eligible for Medicaid or CHIP. To learn more, please visit: https://medicaid.utah.gov/

Mortgage Assistance

The Making Home Affordable (MHA) program helps homeowners obtain mortgage relief and avoid foreclosure. Unemployed homeowners may temporarily reduce or suspend mortgage payments. For information, call toll-free (888) 995-HOPE (4673) or visit www.makinghomeaffordable.gov.

Supportive Services

If you need temporary assistance, such as Food Stamps or medical care, apply online at http://jobs.utah.gov/mycase. You may also visit your nearest Employment Center.

Additional Services

Utah 2-1-1 is a free, confidential tool that connects you with state and community services. To search by need, by group or by provider, call toll-free (888) 826-9790 or visit www.uw.org/211.

DECLARATION OF PETER GOLUB
Utah Code § 78B-5-705 – Unsworn Declaration
State of Utah, Salt Lake County

I, **Peter Golub**, declare under penalty of perjury that the following statements are true and based upon my personal experience:

1. **Identity.** I am the appellant in Workforce Appeals Board Case No. 25-B-00327. I reside at 3921 S 2000 E, Holladay, Utah 84124.
2. **May 5, 2025 Assignment to Teach at Taylorsville Elementary.** On the morning of 5 May 2025, I accepted a same-day substitute-teacher assignment through Granite School District's Frontline portal to teach at Taylorsville Elementary School. I put on the three-piece suit that is my typical attire for teaching, though I often leave the jacket in the car, so that the day of the incident I was dressed in a pressed dress shirt, tie, waistcoat, pressed slacks, and classic black Florsheim wingtips.
3. **Lack of Class Materials.** Upon arrival the main office provided no roster or schedule, so that I knew neither when classes began or ended nor who was supposed to be in my class. After I'd complained about this multiple times, a secretary handed me a sticky note that listed times for an unrelated class (and for the wrong year). I informed office staff that the absence of a roll and schedule made it impossible for me to plan classes and verify which students belonged in the room.
4. **Unsanitary Classroom Conditions and Absence of Preparatory Materials.** When I entered the classroom, it smelled strongly of mildew. When I attempted to open the window, I discovered they were sealed shut. I did what I could with what I was given, which was exactly nothing—no keys, no schedules, no rosters, no computer, no class, no lesson plan. It was a dance class, even though Taylorsville Elementary had not posted the job as a dance

class on Frontline. During first period, one of the 1st-graders clearly danced their pants off because soon the fungal aroma of the room was complimented by the pungent fragrance of what I hoped was the benign *Clostridioides difficile* and not *Salmonella* or *E. coli*. I reported this to a teacher and asked for something other than the rusty can of Lyson on top the rusty file cabinet, which apart from the miniature desk was the only piece of furniture in the room. Lysol is not supposed to be breathed in. It says so right on the bottle. After asking for an appropriate air-freshener, from a passing teacher, I suggested someone discreetly check which child required a change of clothes.

5. **Noise Complaint & My Response.** At the beginning of the second period, a teacher complained about music volume. I reduced the level and explained that dance instruction necessitates music, suggesting that future classes might be more appropriately held in or near the gymnasium.
6. **Police and K-9 Intervention.** At the end of second period, the principal and vice-principal entered with a uniformed police officer. I noticed a K-9 unit out the window. I asked if I need to take the kids outside for the drill, and instead I was escorted by the officer and principal to her office where I was interrogated about smoking marijuana inside the class. This is the most absurd thing I have ever heard in my 43 long trying years upon this Earth. In my May 5 letter to the Granite School District concerning this matter. I applauded them for this absurdity, for as a Soviet immigrant and someone who has travelled to some of the most corrupt governments on this planet, never in a million years had I ever been shaken down for "smoking marijuana with 1st graders during a dance class inside an elementary school." If I were writing a Samuel Becket play or a Franz Kafka short story, I still would have never risen to the transcended heights of Taylorsville's phantasmagoria. The officer shortly left after detecting no odor of marijuana. (NB I believe the principal insinuated she

could smell "it" on me, but I'd used my girlfriend's conditioner which granted has herbal overtones.) I cooperated fully and answered all questions. The charge was that I had been smoking marijuana in the class of first-graders. I cannot stress this enough. The claim is that I, an old man wearing a tie, a waistcoat, and Florsheim wingtips, walked into an elementary school dance class, and began smoking marijuana with a class of 1st-graders. I felt like I'd just won the Surrealist Lottery or the Glitch in the Matrix Prize, which you do apply for when substituting at the Granite School District. The word dumbstruck never had such a literal connotation—What kind of a lunatic smokes Schedule-1 drugs inside an elementary school with 1st-graders while wearing a suit and tie and wingtips?! Willy Wonka isn't a real person. The Wizard of Oz wasn't even real in the original story. All I was trying to do was teach a dance class I didn't know I'd signed for. Had I known it was a dance class, I would have never worn taken the task. But Taylorsville Elementary did not post it as a dance class. I am not a good dancer, especially in really slippery dress shoes. When I attempted to explain to the principal, vice-principal, and police that the class had already had a complex perfume of bacteria and fungi, the vice-principal interrupted me saying that she knew exactly what marijuana smelled like, because she had been inside a boy's bathroom… a junior-high boy's bathroom, only a few times… but she KNEW what it smelled like. The word "stupefied" has never had a more literal connotation. I'd always thought the term "jaw-dropping" was a figure of speech, that no one literally "wrings their hands to heaven." But they do.

7. **Principal's Demand for a Blood Test.** Before students were to return from lunch the principal returned to my class for a third time and demanded, verbatim, "You need to give me a blood test." First, my left eye twitched, and I noticed a kind of strange angle to my neck. However, it's always the first exploding shell that causes the initial disorientation and

ringing in the ear. By the time it's the third shell, one is less shocked, so I very calmly gathered my things, held my head high, and ran out of that building.

8. **Account Deactivation.** That evening, when I attempted to pick up another assignment, but Frontline displayed an error message (Exhibit A), informing me that my account had been deactivated. I emailed Granite immediately describing the incident in great psychological detail. I requested my account to be reactivated. However, my attempts to contact Mr. Bentley and another Granite District manager were ignored. Next, on May 10, 2025, an email from the Granite School District to my Gmail informed me that *all* district credentials had been deactivated (Exhibit B). Thus, by May 10, I was unquestionably no longer an employee of the Granite School District.
9. **Continued Desire to Work.** I never said I resigned, I quit, or made any such indication before I had been terminated. On the contrary, I made it manifestly clear that I wanted to work for the district as I had spent considerable time researching, thinking, and writing about how the district could address its failure to meet its fiduciary responsibilities to its student body, especially its non-white and low-income students.
10. **Impact on Employment.** Because Frontline is the sole platform for accepting substitute work, deactivation rendered continued employment impossible. I remained willing and available to work but was barred from doing so.

Executed on **18 July 2025**, at Holladay, Utah.

Peter Golub